

HOUSE No. 1895

The Commonwealth of Massachusetts

PRESENTED BY:

Samantha Montañó

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to summary process.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Samantha Montañó</i>	<i>15th Suffolk</i>	<i>1/17/2025</i>
<i>Mike Connolly</i>	<i>26th Middlesex</i>	<i>4/7/2025</i>
<i>Russell E. Holmes</i>	<i>6th Suffolk</i>	<i>4/7/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>1/6/2026</i>

HOUSE No. 1895

By Representative Montañó of Boston, a petition (accompanied by bill, House, No. 1895) of Samantha Montañó relative to summary process. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to summary process.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 239 of the General Laws is hereby amended by adding, after section 14, the
2 following new section:-

3 Section 15. Two-tier process;

4 (a) All summary process cases shall be handled in a two-tier process. (i) First tier. This
5 event will be for the parties to determine the status of the case, explore the availability of
6 resources, attempt mediation or other opportunity to reach a resolution to the case, and identify
7 next steps in preparing the case for trial. No default or dismissal may enter if a party does not
8 appear at the first tier event. (ii) Second tier. For cases which are not resolved, the Clerk's Office
9 shall send a written notice to the parties of the trial date.